

The Board of Education of the Brecksville-Broadview Heights City School District, Ohio, met in Regular session on March 25, 2020 commencing at 7pm, at Brecksville, Ohio, with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

A RESOLUTION APPROVING OASBO SECTION 457 PLAN

WHEREAS, the Brecksville-Broadview Heights City School District (the “District”) desires to adopt and maintain an “eligible deferred compensation plan” under Section 457(b) of the Internal Revenue IRC (“IRC”) through the Ohio Association of School Business Officials (“OASBO”) OASBO 457 Deferred Compensation Plan (the “Plan”); and

WHEREAS, OASBO maintains a Plan Provider Agreement with Voya Retirement Insurance and Annuity Company (“Voya”), and AXA Equitable Life Insurance Company (“EQUITABLE”), pursuant to which Voya and EQUITABLE have provided (i) group annuity contracts that meet the requirements of IRC Section 457(g)(3) (“Provider Contracts”), and (ii) assistance with certain aspects of Plan administration; and

WHEREAS, the Plan provides that it may be amended from time to time by OASBO; and

WHEREAS, OASBO has amended and restated the terms of Plan and the Plan Provider Agreement, effective as of April 1, 2017; and

WHEREAS, as a Participating Employer under the Plan, the District wishes to permit Eligible Employees under the Plan to be able to select Provider Contracts from either or both of Voya and EQUITABLE for receipt of their employee contributions under the Plan;

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, Cuyahoga County, Ohio, that:

Section 1. Inclusion of Equitable as a Plan Provider. Effective as of March 25, 2020 in connection with the administration of the Plan, EQUITABLE shall be permitted to offer Provider Contracts for receipt of employee contributions under the Plan. EQUITABLE shall do so pursuant to, and in accordance with, the terms of the Plan Provider Agreement between OASBO and EQUITABLE. The Treasurer is hereby authorized to execute the OASBO Plan Provider Selection Agreement and any other documents that may be necessary for inclusion of EQUITABLE as an additional Provider under the Plan.

Section 2. Compliance with Open Meeting Requirements. This Board finds and determines that all formal actions of this Board and any of its committees concerning and relating to the adoption of this Resolution were adopted in an open meeting of this Board or committees, and that all deliberations of this Board and any of its committees that resulted in those formal actions were in meetings open to the public, in compliance with the law.

Section 3. Captions and Headings. The captions and headings in this Resolution are solely for convenience of reference and in no way define, limit or describe the scope or intent of any Sections, subsections, paragraphs, subparagraphs or clauses hereof.

Section 4. Effective Date. This Resolution shall be in full force and effect from and immediately upon its adoption.

_____ seconded the motion.

Upon roll call on the adoption of the Resolution, the vote was as follows:

TREASURER'S CERTIFICATION

The above is a true and correct extract from the minutes of the meeting of the Board of Education of the Brecksville-Broadview Heights City School District, Ohio, held on March 25, 2020, showing the adoption of the Resolution hereinabove set forth.

Written notice of the time and place of that meeting of the Board was served personally upon, or actually received by, each Board member at least two days in advance of such meeting; and notice of the time, place and purposes of that meeting, was, at least 24 hours in advance of the time of such meeting, given to and received by all news media that had heretofore requested notification of such meetings pursuant to Section 121.22 of the Revised Code and the procedures established by the Board for that purpose.

Dated: _____, 2020

Treasurer, Board of Education
Brecksville-Broadview Hts City School District, Ohio